

The Hellenic Data Protection Authority convened at its headquarters, Kifisias 1-3, Athens, on Friday, July 7, 2023, at the invitation of its President, to examine the case referred to below in the background of this decision. Present were the President of the Authority, Konstantinos Menoudakos, the regular members of the Authority Spyridon Vlachopoulos, as rapporteur, Konstantinos Lamprinoudakis, Charalampos Anthopoulos, Christos Kalloniatis, Aikaterini Iliadou, and Grigoris Tsolias. Present without voting rights were Anastasia Tritaki, legal auditor – lawyer, as assistant rapporteur, and Irini Papageorgopoulou, employee of the administrative affairs department, as secretary.

The Authority took into account the following:

The application No. Prot. G/EIS/252/13-01-2023 was submitted to the Authority by A, in which the applicant requests the reconsideration of the act of archiving dated 30/11/2022 of his complaint No. Prot. G/EIS/10117/14-09-2022, which was communicated to him by the Authority with document No. Prot. G/EIS/3281/14-12-2022.

With the complaint No. Prot. G/EIS/10117/14-09-2022, the complainant and now applicant stated that on 18.7.2014, he filed a lawsuit against the Municipality of F before the Administrative Court of First Instance X, for the unlawful transmission of personal data concerning him to unauthorized persons, specifically on the grounds that a report regarding his tax matters, which was lawfully in the file of the defendant, became, according to the complainant's claims, "in an inappropriate manner, part of unrelated case files pending in various Courts and in cases I had against third parties. That is, some presented this report as evidence of alleged illegal activities against me." (...) · according to him, in this way, without his knowledge, his tax obligations were made public by the defendant to third parties B. and K., who were not authorized to be informed.

According to the complainant's claims, in the context of the ongoing legal dispute with the defendant Municipality before the Administrative Court of First Instance X, the Municipality submitted on 16.6.2021 the Supplementary Report of Opinions dated 15.6.2021, in which it denied that it transmitted the relevant report to B. and K. and claimed that the publication of the said report could have been carried out by third parties M.K. and/or S.M., who, according to the claims of the defendant Municipality, had obtained it lawfully due to a previous complaint by the complainant against their companies. To prove his claims, the defendant submitted as relevant documents the final decision No. ... of the Three-Member Court of Appeal Ψ, which concerned a lawsuit by the complainant against M.K., and the decision ... of the Multi-Member Court of First Instance X regarding the lawsuit of S.M. against the complainant.

According to the complainant's claims, these decisions had no relevance to the ongoing legal dispute between him and the defendant and were submitted with the aim of "defaming me and assassinating my character." The complainant further pointed out that the reasoning of these civil decisions included special categories of his personal data, specifically personal data concerning his sexual orientation. Following this, the complainant protested before the Authority regarding the collection and judicial use of his personal data by the defendant Municipality of F, as, according to his claims, the defendant Municipality lacked a legal basis for the collection and further processing of the personal data concerning him that were included in the said judicial decisions, as it had no involvement/relevance either with the parties to the cases for which the relevant decisions were issued or with the said cases in general. Furthermore, the complainant stated that he had not received any notification from the Municipality, as it was obliged to do according to Article 14 of the GDPR Regulation, from the moment of obtaining the decision that includes the personal data concerning him; on the contrary, he learned about the, according to his claims, entirely unlawful processing of them only 2 when these decisions were communicated to the Administrative Court of X. Therefore, in the opinion of the complainant, the Municipality of F directly violated the principles of "Legality, Objectivity, and Transparency," as reflected in Article 5 paragraph 1 subparagraph a of the GDPR. The Authority, after examining the aforementioned complaint, issued the aforementioned act of archiving on 30/11/2022, due to lack of jurisdiction of the Authority. Specifically, taking into account that the complaint

exclusively concerns the collection and judicial use of documents (specifically the mentioned judicial decisions) by the respondent in the context of a litigation before the Administrative Court of X, and given that the contested documents have already been included in a case file and constitute or have already constituted the subject of judicial assessment, and since the complaint concerns the collection and the judicial use of the aforementioned judicial decisions, the Authority deemed that the issue falls outside its jurisdiction, in accordance with the provisions of Article 55 paragraph 3 of the GDPR and Article 10 paragraph 5 of Law 4624/2019. Subsequently, the complainant and now applicant submitted against the above act the pending application with reference number G/EIS/252/13-01-2023, in which he claims that the provisions mentioned in the contested act of archiving do not apply, as the subject of the contested complaint was not the processing of data by a judicial authority, but the collection and further processing before the court of the contested judicial decisions by the respondent Municipality. Furthermore, the applicant insists on his claim that the Authority was requested to check for any violation of Articles 5 paragraph 1 subparagraph a and 14 of the GDPR by the respondent and points out that based on the factual circumstances of the case, no grounds for exemption from the obligation to inform him arise, according to the provisions of Article 32 of Law 4624/2019, as in force; however, even if any of these grounds existed, the applicant argues, it would constitute a strong limitation on his rights as a data subject, as the Authority has pointed out in its Opinion No. 1/2020, since there are no "specific provisions depending on the case for the issues referred to in paragraph 2 of Article 23 of the GDPR." The Authority, after examining the elements of the file, having heard the rapporteur and the observations of the assistant rapporteur, who was present without voting rights, after thorough discussion,

THOUGHT ACCORDING TO THE LAW

1. Since, according to Article 24 paragraph 1 of Law 2690/1999 (Administrative Procedure Code), "If the relevant provisions do not provide for the possibility of exercising, according to the next article, a special administrative or administrative appeal, the interested party, for the restoration of material or moral damage to his legal interests caused by an individual administrative act, may, for any reason, by his application, request either from the administrative authority that issued the act, the revocation or modification of it (request for remedy), or from the authority that supervises that which issued the act, its annulment (hierarchical appeal)." According to the meaning of the provision, the request for remedy aims at the revocation or modification of the contested individual administrative act for legal or factual defects thereof that relate to the regime under which it was issued.

2. Since, with the above provisions of Article 24 of the Administrative Procedure Code, a right is established for every "interested" governed person, who has suffered material or moral damage from an individual administrative act, to address the authority that issued the said act before resorting to judicial protection (simple administrative appeal, otherwise request for remedy). This is an "informal" administrative appeal in contrast to the formal "special" and "administrative" appeals of Article 25 of the Administrative Procedure Code. The said appeal requests the revocation or modification of the aforementioned individual administrative act, in order to restore the material or moral damage of the appellant, which was caused by the administrative act in those cases where the law does not provide for the possibility of exercising the above appeals of Article 25 of the Administrative Procedure Code.

3. Since, based on the established case law of the Authority, requests for remedy are rejected if no new and critical factual elements for the case are invoked or submitted. With the issues raised in the pending request for remedy, as outlined above in the background of this document, no new and critical factual elements for the case are invoked or submitted, but only legal claims, as the request for remedy under discussion raises

****Incorrect interpretation and application in this case of the provisions of Article 55, paragraph 3 of the General Data Protection Regulation 2016/679/EU (hereinafter GDPR) and Article 10, paragraph 5 of Law 4624/2019.****

4. However, since a significant number of complaints and requests are pending before the Authority, in the context of which issues arise concerning, on the one hand, the collection and, on the other hand, the invocation and submission of personal data by parties in the context of judicial disputes, the Authority deems it necessary to address the present request for remedy and to re-examine the legal

issue of general interest raised by this request.

5. Article 55, paragraph 3 of the GDPR states that “[s]upervisory authorities shall not be competent to monitor processing operations carried out by courts in the exercise of their judicial authority,” while additionally, Article 10, paragraph 5 of Law 4624/2019, as in force, states that “[t]he Authority shall not be competent to monitor processing operations of personal data carried out by judicial and prosecutorial authorities in the context of their judicial functions and duties, (...)”. Furthermore, Recital 20 of the GDPR states that “While this Regulation applies, among other things, to the activities of courts and other judicial authorities, Union or Member State law could specify the acts and procedures of processing in relation to the processing of personal data by courts and other judicial authorities. The competence of supervisory authorities should not cover the processing of personal data when courts act in their judicial capacity, in order to ensure the independence of judicial officials in the exercise of their judicial duties, including decision-making. The supervision of such data processing operations should be able to be entrusted to specialized bodies within the judicial system of the Member State, which should in particular ensure compliance with the rules of this Regulation, raise awareness among members of the judiciary regarding their obligations under this Regulation, and address complaints related to such data processing procedures.”

6. Because, based on the established case law of the Authority, the Authority does not have jurisdiction to adjudicate on personal data that is contained in the file of the case, as the file of an ongoing case does not constitute a record that falls under the jurisdiction and control of the Authority. Furthermore, according to the Judgment of the CJEU C-245/20, dated March 24, 2022, regarding the interpretation of the provision of Article 55(3) GDPR, “(...) the preservation of the independence of judicial officials generally requires that judicial duties are performed with full autonomy, without courts being subject to any hierarchical relationship or subordination and without receiving orders or instructions from any source, thus being protected from any external interference or pressure capable of affecting the independent judgment of their members and influencing their decisions. Respect for the guarantees of independence and impartiality required under Union law presupposes the existence of rules that leave no room for any reasonable doubt among citizens regarding the protection of the relevant body against external factors and regarding its neutrality towards conflicting interests. (...) Therefore, the reference in Article 55(3) GDPR to the processing operations carried out by courts ‘in the context of their jurisdiction’ means, within the framework of this regulation, that it is not limited to the processing of personal data carried out by courts in the context of specific cases, but rather concerns, in general, all processing operations carried out by courts in the context of their jurisdictional activity, resulting in the exclusion from the jurisdiction of the supervisory authority of the processing operations whose oversight by this authority could, directly or indirectly, affect the independence of judicial officials and weigh on their decisions (...)”

7. Because in light of the interpretation of Article 55(3) GDPR and Recital 20 GDPR by the CJEU, which is consistent with the established case law of the Authority, the assessment of the legality of the invocation and submission before a court or prosecutorial authority, in the context of judicial disputes or prosecutorial investigations, of personal data rests with the competent judicial or prosecutorial authority.

****8.**** Since the case is pending and falls outside the Authority's jurisdiction, its judgment, according to the decision of the Council of State 2683/2010 (Fourth Chamber), must be limited to the scope of its powers as an administrative body and should not extend to issues that are subject to judicial review and are pending before the competent courts.

Specifically, since the data has already been included in a case file, the Authority's judgment regarding the legality of the processing of this data by the parties before the judicial or prosecutorial authorities, with a check on compliance with the conditions set by the GDPR, would constitute an impermissible constitutional and legislative intervention in powers that belong to judicial or prosecutorial authorities within the framework of their jurisdictional function and consequently a violation of Article 55 paragraph 3 of the GDPR by implication.

****9.**** However, regarding the collection in a filing system of personal data carried out by the data

controller, the Authority considers, by majority, that these processing actions are distinct from the actions of invoking and presenting data before judicial or prosecutorial authorities and is not prevented, for reasons of jurisdiction, from making a judgment on the legality of the processing and the compliance with the conditions set by the GDPR. Moreover, the Authority has previously distinguished its jurisdiction regarding the legality of the source (collection) of the data in contrast to its lack of jurisdiction to rule on the legality of the processing within the context of a trial.

****10.**** According to the previous considerations, the Authority is primarily competent to assess the legality of the collection in a filing system of personal data of third parties by the data controller, with the aim of future invocation and presentation of these before a judicial/prosecutorial authority, conducting a check on compliance with the GDPR conditions.

6 Council of State 2683/2010 (Fourth Chamber), NoB, 59 pages 150-157, according to which "In this case, the Authority, in order to conclude that the applicant company does not have a legitimate interest in seeking the contested data (...), made a judgment regarding the meaning of Article 544 paragraph 7 of the Code of Civil Procedure and the ultimate time limit for raising the objection of Article 656 of the Civil Code and ultimately regarding the admissibility of the applicant company's exercise of the legal remedy of reopening (...), on the occasion of which the relevant personal data would be presented before the competent court. However, this judgment, purely of a jurisdictional nature, which belongs exclusively to the jurisdiction of the civil courts according to the Constitution, as stated in the previous fourth consideration, falls outside the Authority's jurisdiction, as delineated by the nature of its mission and the relevant provisions (especially Article 19 of Law 2472/1997)."

7 Hellenic Data Protection Authority 58/2003, Hellenic Data Protection Authority 37/2008.

between others, the manner of collection of the contested personal data, as well as their prima facie relevance, in the sense that they are not evidently inappropriate for proving claims in the context of the disputed case, according to Article 5(1)(b) and (c) of the GDPR. The same applies regarding the Authority's competence to assess the processing (disclosure/provision) of personal data carried out by a data controller to a third party, for the purpose of invoking and presenting them by the latter before a judicial/prosecutorial authority. It is understood, however, that, according to what is stated in Recital 7, with the submission and use of the contested data before a judicial/prosecutorial authority, which is exclusively competent to assess their processing, the competent judicial/prosecutorial authority becomes the relevant authority according to Article 55(3) of the GDPR, and consequently, the relevant competence of the Authority ceases. However, in the opinion of one member of the Authority, the assessment of the collection of personal data is logically and necessarily linked to their utilization by the competent judicial or prosecutorial authority, and, consequently, the Authority does not have the competence to assess either the manner of collection, as the relevant assessment would constitute an indirect intervention in the jurisdictional work.

10. Since, according to Recital 4, the Authority, accepting the above request for remedy, proceeds to re-examine the complaint numbered G/EIS/10117/14-09-2022.

11. Since, from the elements of the file of the aforementioned complaint numbered G/EIS/10117/14-09-2022 and the above request for remedy, the factual circumstances invoked by the complainant are not proven, as no relevant evidence was submitted to substantiate the complaint, nor subsequently in the context of the submission of the request for remedy, so that the existence of factual circumstances that would constitute a violation of the complainant's personal data and rights as a data subject is established. Consequently, the said complaint is to be rejected.

8 See also DPA 49/2022 (Section) of the Authority, which ruled that the complained company lawfully provided personal data of a former employee to his ex-wife, as the latter had a legitimate interest in its provision, for the purpose of supporting her lawsuit for sole custody of a child and countering the opposing lawsuit of her former husband.

The President
The Secretary

Konstantinos Menoudakos
Iriní Papageorgopoulou

FOR THESE REASONS

The Authority

- a) Accepts the request for remedy under consideration.
- b) Rejects the complaint numbered G/EIS/10117/14-09-2022, for the reasons stated in Recital 11 of this document.